

Smt. Yumkhaibam Gaitri Devi vs Hanglem Ghonideepak on 4 February, 2026

Author: A. Bimol Singh

Bench: A. Bimol Singh

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IN THE HIGH COURT OF MANIPUR
AT IMPHAL
MC(MAT APP) No. 23 of 2025

Smt. Yumkhaibam Gaitri Devi

- Versus -

Hanglem Ghonideepak

B E F O R E
HON'BLE THE CHIEF JUSTICE MR. M. SUNDAR
HON'BLE MR. JUSTICE A. BIMOL SINGH

O R D E R

[M. Sundar, CJ] 04.02.2026 [1] Captioned miscellaneous case (MC) has been filed seeking condonation of delay (CoD) qua 24 days delay in filing a statutory appeal under Section 19 of the 'Family Courts Act, 1984'. [2] In the hearing today, Mr. Anjan Prasad Sahu, learned counsel on record for MC applicant and Ms. Lekhakumari, learned counsel for sole respondent in MC (to be noted, Ms. Lekhakumari has since filed Vakalatnama for the sole respondent) are before this Court. [3] Adverting to paragraph No. 10 of the condonation of delay (CoD) petition, learned counsel for applicant submits that there was some ambiguity about the period of limitation qua Section 19 of the 'Family Courts Act, 1984' and Section 28 of the 'Hindu Marriage Act, 1955' and that caused the delay.

Page 1|2 [4] In response to above plea, learned counsel for respondent submitted that there is no ambiguity as the appellant has filed the captioned statutory appeal under Section 19 of the 'Family Courts Act, 1984'. [5] Be that as it may, we find that a matrimonial divorce suit being Matrimonial (Divorce) Suit No. 27 of 2021 on the file of Family Court, Imphal East being a suit filed by the husband seeking dissolution of marriage was decreed (after full contest) on 09.10.2025 vide the

impugned judgment. Wife is on appeal and we find that vide the impugned judgment, permanent alimony has also been granted.

[6] Considering the facts and circumstances of the case, taking into account the fact that the captioned matter is a matrimonial case and also considering that the issue pertains to a technical interplay between two statutes besides noticing that the delay sought to be condoned is 24 days, this Court deems it appropriate to overrule the objection of respondent as hypertechnical and accede to condonation of delay prayer. [7] In the result, delay condoned. Captioned MC is ordered as prayed for. There shall be no order as to costs.

JUDGE

CHIEF JUSTICE

FR/NFR

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Page 2|2